



**Letitia James**

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## **Attorney General James and Mayor Adams Take Down Eco-Yogi Slumlords Who Ran Unlawful Short-Term Rental Operation, Illegally Evicted Tenants**

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*Landlords to Surrender \$2 Million Property That Will Turn Into Affordable Housing*

*\$2.25 Million Settlement Results From First Enforcement of Unlawful Eviction Law in New York City, Represents Largest Settlement Against Illegal Short-Term Rental Operator*

NEW YORK – New York Attorney General Letitia James and New York City Mayor Eric Adams today shut down a Brooklyn-based slumlord and [scored a victory for tenants' rights after a group of tenants were subjected to unlawful evictions in July 2020](#). Attorney General James and Mayor Adams announced a settlement against Gennaro Brooks-Church and Loretta Gendville — the owners of 1214 Dean Street in Crown Heights, Brooklyn — for illegally evicting tenants in 2020 and running an unlawful short-term rental operation for four years across nine Brooklyn buildings. Today's [\\$2.25 million settlement agreement compels the owners to forfeit their \\$2 million property, which will be converted into affordable housing for New Yorkers](#). The legal actions — coordinated jointly between the Office of the Attorney General (OAG), the city's Law Department, the Mayor's Office of Special Enforcement (OSE), and Mayor's Office to Protect Tenants (MOPT) — represents the first-ever enforcement of the unlawful eviction law in New York City.

“During a period of unprecedented global struggle, Brooks-Church and Gendville callously forced New Yorkers from their homes,” said **Attorney General James**. “We have long seen these types of harmful housing scams, especially in Central Brooklyn, where people make a business out of unfairly and inhumanely pushing others out of their homes. Let this serve as a warning: Any landlord who mistreats and tries to unlawfully evict renters will face the full force of my office and the law. We will continue

to work closely with Mayor Adams and other government partners to ensure individuals like these can no longer terrorize New Yorkers.”

“These landlords may have been sending a loving and peaceful message out publicly, but they were kicking tenants to the curb privately,” said **Mayor Adams**. “Safe, affordable housing is not only vital to the city's survival and public safety but is a basic human right, which is why my administration will never hesitate to stand up for tenants who are illegally harmed. Today's settlement sends a clear message to slumlords everywhere in the city: Cruel and illegal behavior will not be tolerated, and, as long as I am mayor, you will never get away with putting tenants at risk. I thank Attorney General James for her continued partnership and fighting every day to protect New York City's tenants.”

The global settlement stemming from the city's lawsuits and the investigations by the OAG and the city requires landlords Gennaro Brooks-Church — a self-proclaimed “green builder” — and Loretta Gendville — the owner of a Brooklyn-area yoga studio and a separate retail store that sells both maternity and workout clothes — to take the following steps:

- Transfer 1214 Dean Street — which is valued at more than \$2 million — to an entity designated by the city for use as affordable housing;
- Pay \$125,000 to the OAG, to be put toward Attorney General James' Affordable Housing Fund;
- Pay \$125,000 to the city of New York for substantial penalties;
- Agree to a permanent injunction against further illegal short-term rental activity anywhere in the city; and
- Comply with laws governing rentals in New York state pursuant to a written agreement with the OAG.

Simultaneously, the landlords have settled the lawsuit brought by former tenants of 1214 Dean Street by providing them with a substantial recovery for the damages and trauma they suffered from the unlawful eviction. The New York City Department of Housing Preservation and Development (HPD) will work with an entity designated by the city to rehab the property for affordable housing.

“The Adams administration will not tolerate tenant harassment,” said **Chief Housing Officer Jessica Katz**. “We will go to bat for tenants, protect our housing stock, and create the affordable housing New Yorkers need and deserve. Safe, affordable housing is a top priority for this administration, and our work on this case shows it.

Thank you to all of the tenant advocates and community members who worked so hard on this case.”

Attorney General James began an investigation in July 2020 following an illegal eviction incident at the 1214 Dean Street property. In coordination with the city of New York, Attorney General James found that from January 2016 through at least the summer of 2020, Mr. Brooks-Church and Ms. Gendville ran an illegal short-term rental operation generating \$1.4 million by placing 83 different listings on Airbnb. The scheme deceived nearly 5,600 guests, and prevented 14 homes across nine Brooklyn buildings from housing permanent tenants. In July 2020, the landlords used threats and force to push out at least four tenants at 1214 Dean Street — removing their tenants’ possessions and changing the locks without providing keys to the tenants. These actions violated the law prohibiting property owners from engaging in “[self-help evictions](#)” — also known as lockouts — and circumvented the statewide moratorium on evictions during the COVID-19 pandemic.

The city became aware of the landlords’ illegal behavior via social media on July 7, 2020. Within three days — on July 10 — the city’s Law Department sent a cease-and-desist letter to the landlords. On November 17, 2020, working closely with the OAG and MOPT, the Law Department’s Tenant Protection Unit brought its [first lawsuit under the city’s Unlawful Eviction Law](#). The following month, on December 16, OSE [filed a lawsuit targeting the illegal short-term rentals](#), which did not include 1214 Dean Street. Four of the former 1214 Dean Street tenants — now represented by counsel from TakeRoot Justice — brought an action for damages based on their unlawful eviction. Additionally, the OAG began an investigation of possible state law violations.

If the terms of the agreement are not met, Attorney General James reserves the right to pursue civil action.

“These defendants must pay a heavy price for their illegal actions,” said **New York City Corporation Counsel Georgia M. Pestana**. “This settlement demonstrates that New York City will not tolerate the forcible and illegal eviction of tenants — especially during a pandemic — or the loss of homes for New Yorkers to a ring of illegal short-term rentals. This is the first lawsuit brought by the law department’s Tenant Protection Unit under the city’s Unlawful Eviction Law, but owners who engage in this type of illegal activity will be sorely mistaken if they think it will be the last.”

“By operating dozens of illegal listings on Airbnb, these landlords took homes away from would-be residents of Brooklyn neighborhoods from Carroll Gardens to East New

York to the detriment of permanent renters in need of a home,” said **OSE Executive Director Christian Klossner**. “But this settlement with the city and the state ensures they will not be able to do so in the future.”

“No landlord is above the law, and it is time for landlords to understand that ‘self-help evictions’ and tenant harassment are illegal in New York City,” said **MOPT Acting Director Ricardo Martínez Campos**. “These issues are high priority for the Mayor’s Office to Protect Tenants, and we will continue to use the city’s powerful enforcement and litigation tools to enforce our laws. This settlement sets a clear example for other landlords who engage in illegal practices that hurt tenants: New York City has strong tenant protection laws, and we will not hesitate to enforce them fully.”

“Once again, the city and state are making it clear that landlords must abide by the law. These landlords shamelessly harassed the tenants of 1214 Dean Street, locked them out, and did so during the statewide eviction moratorium,” said **HPD Commissioner Adolfo Carrión, Jr.** “I want to thank our city agency partners and Attorney General Letitia James for holding these landlords accountable and requiring the surrender of 1214 Dean Street to the city of New York, which our team at HPD will work to return to the community as badly needed affordable housing.”